



CHAPTER 37

An Act to amend the provisions of the Land Drainage Act, 1930, relating to the ascertainment of annual value for the purposes of drainage rates; and for purposes connected therewith. [7th July, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The annual value for the purposes of any drainage rate of any land in respect of which an assessment to income tax is made under Schedule A shall be its annual value for the purposes of Schedule A, as determined (within the meaning of this section) for the last year of assessment ending before the end of the period for which the rate is made. Annual value for purposes of drainage rates.

(2) If at the date the rate is made the said annual value has not been determined as mentioned in subsection (1) of this section then, until it is so determined, it shall for the purposes of the rate be taken to be whichever of the following amounts is the less, that is to say—

- (a) the annual value of the land as last stated before the said date in any assessment under Schedule A signed and allowed under section thirty-five of the Income Tax Act, 15 & 16 Geo. 6. 1952, or under that section as applied by the Fifth & 1 Eliz. 2. c. 10. Schedule to that Act;
- (b) the annual value of the land as last determined before the said date for the purposes of Schedule A;

but after the annual value has been determined as mentioned in subsection (1) of this section it shall, if different from the amount

taken under the foregoing provisions of this subsection, be substituted for that amount and the rate shall be amended accordingly as respects the land, and any amount overpaid shall be repaid or allowed and any amount underpaid may be recovered as if it were arrears of the rate.

(3) Where at the date the rate is made the annual value of the land has never been determined for the purposes of Schedule A but the land includes the whole or part of any land whose annual value has then been so determined or consists of or includes the whole or part of any such lands, then, for the purposes of subsection (2) of this section, the annual value mentioned in paragraph (b) thereof shall be taken to be the aggregate of—

- (a) the annual value or values last so determined before the said date (apportioned in the case of any land only partly included in the first-mentioned land); and
- (b) so much (if any) of the annual value mentioned in paragraph (a) of that subsection as is proportionate to any part of the first-mentioned land which neither is nor forms part of land whose annual value has then been determined as aforesaid.

(4) An amendment in any rate made in pursuance of this section shall have effect from the beginning of the period for which the rate is made and shall be treated for the purposes of Part IV of the Land Drainage Act, 1930, as an amendment made in pursuance of section twenty-eight of that Act.

20 & 21 Geo.
5. c. 44.

(5) For the purposes of this section the annual value of any land shall be taken to be determined for any year of assessment when an assessment for that year in respect of the land has been signed and allowed under section thirty-five of the Income Tax Act, 1952, or under that section as applied by the Fifth Schedule to that Act and either—

- (a) the time for appealing against the assessment has expired without a notice of appeal having been given; or
- (b) any proceedings on an appeal against the assessment (including any proceedings in consequence of such an appeal) have been finally disposed of.

(6) The information which surveyors of taxes may be required to furnish under subsection (4) of section twenty-nine of the Land Drainage Act, 1930, shall include such particulars of notices of assessments, appeals against assessments and the determination of such appeals as may be required to enable a drainage board to give effect to the foregoing provisions of this section.

(7) In section twenty-nine of the Land Drainage Act, 1930, in subsection (1) the definition of "annual value", and in subsection (2) the words "of the gross annual value of any land" are hereby repealed.

2.—(1) This Act may be cited as the Drainage Rates Act, 1958, and shall be construed as one with the Land Drainage Act, 1930. Short title,
construction,
interpretation,
commencement
and extent.

(2) In this Act, "drainage rate" means a rate made under Part IV of the Land Drainage Act, 1930.

(3) This Act shall come into force on the first day of April, nineteen hundred and fifty-nine.

(4) This Act does not extend to Scotland or Northern Ireland.

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